



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 15, 2024

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202208564 (Incident Date: November 26, 2022) regarding Police Officer Morgan Taylor, Tax No. 966882 (DADS No. 2024-29873), and Police Officer Victoria Figueroa, Tax No. 955916 (DADS No. 2024-29872)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202208564, pertaining to Police Officer Taylor and Police Officer Figueroa. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that no disciplinary action is warranted in connection with the substantiated allegations against said Officers.

In this case Police Officer Taylor and Police Officer Figueroa responded to an apartment building where it was alleged that one tenant menaced another tenant with a knife. The suspect was located and arrested. While escorting the suspect out of the building, his loosely fitting shorts fell down briefly exposing his genitals. The Police Commissioner has determined that the video footage clearly shows the officers never intended to sexually humiliate the suspect. Instead the video evidence clearly shows the officers attempting to cover the suspect's genitals. Once the suspect alerted both officers that his genitals were exposed, they escorted the suspect into a private vestibule area and pulled up his shorts, in an attempt to restore his privacy. The shorts apparently did not fully cover the suspect, until their supervisor further fixed the suspect's loose shorts. However, the officers' intention was to cover the suspect's genitals. Throughout the interaction, Police Officers Taylor and Figueroa

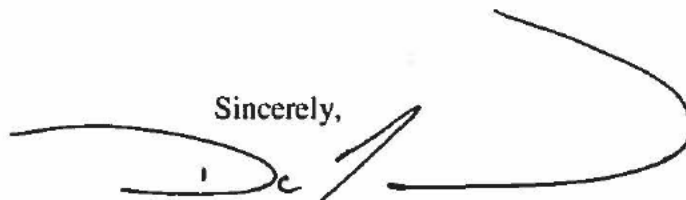
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remained courteous and professional. The Police Commissioner has determined to issue discipline in this case would not be in the interest of justice.

Therefore, the Police Commissioner directs that no disciplinary action be imposed against Police Officer Taylor and Police Officer Figueroa for the allegations of sexual humiliation of an individual.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office